

PLUGANDPLAY

**Volvo Group North America,
LLC**

Anchor Corporate Membership
Agreement
Supply Chain
Silicon Valley

This Corporate Membership Agreement (“Agreement”) is made effective as of April 01, 2022 (“Effective Date”), by and between Volvo Group North America, LLC, whose principal office is located at 335 E. Middlefield Road, Mountain View, CA 94043 (hereinafter “CLIENT”), and Plug & Play, LLC (also doing business as “Plug and Play Tech Center”), whose principal office is located at 440 North Wolfe Road, Sunnyvale, CA, 94085, United States (hereinafter “Plug and Play”). Plug and Play and CLIENT hereinafter jointly referred to as the “Parties” and individually to as the “Party.”

1. The Scope of the Agreement

1.1. CLIENT is seeking a deeper engagement with Plug and Play to drive business growth opportunities for CLIENT through partnership, pilots, acquisition, or investment in startups and establish CLIENT as an innovation leader in the Supply Chain space. To ensure CLIENT’s success as a strategic member of Plug and Play’s ecosystem, Plug and Play will provide the services described in this Agreement.

1.2. Anchor Membership—Plug and Play Supply Chain

The execution of the Agreement will grant CLIENT a status of “Anchor Member” of Supply Chain at Plug and Play Silicon Valley and benefit from the services listed in Section 2.

2. Anchor Benefits—Plug and Play Supply Chain

Plug and Play accelerates two batches of startups per year (each, a "Batch") and provides workshops, mentorship sessions, EXPOs, business development, and investment opportunities to CLIENT (the "Program"). As an Anchor Member, CLIENT will receive the following:

- 2.1.** Committee Member: CLIENT will occupy one position on the Advisory Board in the Supply Chain Program (a "Committee Member"). The "Advisory Board" consists of the Committee Members from all Anchor Members and Founding Anchor Members of the Supply Chain Program that will guide the trajectory of the Program.
- 2.2.** Elite List: Plug and Play will complete the initial review and vetting of the applications to select a list of up to 100 qualified startups to be considered for admittance into the upcoming Batch of the Program (the “Elite List”). Committee Members will receive the Elite List, and from the Elite List Committee Members will vote to select up to 40 startups to be reviewed at Selection Day.
- 2.3.** Selection Day: CLIENT, as a Committee Member, will review the startups selected to pitch at Selection Day and vote to select up to 20 startups to admit to the Program along with other Committee Members (“Selection Day”).

2.4. Guaranteed Selection: CLIENT, as a Committee Member, may choose one startup from Selection Day to admit into each Batch of the Program.

2.5. Sourcing and Startup Introductions

2.5.1. Private Dealflow Sessions: Plug and Play will facilitate private introductions between CLIENT and startups based on CLIENT's business needs, objectives, and challenges. These connections are made through "Dealflow Sessions"—up to six per year pursuant to this Section 2.5.1. Dealflow Sessions are structured as follows:

- a)** CLIENT shall provide Plug and Play notice of its intention to participate in a Dealflow Session. Plug and Play will, within four weeks of receipt of such notice, deliver a pre-screened list of startups to CLIENT and allow CLIENT to select up to eight startups it wishes to meet. Of the eight startups chosen by CLIENT, Plug and Play will arrange for CLIENT to meet (virtually or in-person) up to four startups during a two-hour Dealflow Session.
- b)** Each of the selected startups will present to CLIENT for 30 minutes followed by open discussions between startups and CLIENT.
- c)** If CLIENT or any of its employees, contractors or representatives are unable to attend the Dealflow Session in person, Plug and Play will arrange a virtual or extended Dealflow Session to accommodate CLIENT's schedule.

2.5.2. Ad-Hoc Introductions: Plug and Play will make additional ad-hoc introductions between CLIENT and startups as new opportunities arise during the Term (defined in Exhibit A: Term).

2.5.3. Playbook: During the Term, CLIENT may access the virtual platform created and developed by Plug and Play called "Playbook". Playbook is Plug and Play's proprietary innovation software that allows corporate members to easily track engagement with startups and includes a database of startup profiles, exclusively for Plug and Play's corporate members. Prior to using Playbook, CLIENT and its representative(s) must first agree to the Playbook Terms and Conditions which can be found here: <https://playbook.vc/legal/tos.html>.

2.5.4. CLIENT Affiliates. At CLIENT's option and upon reasonable notice to Plug and Play, CLIENT may direct that any introductions, meetings, discussions, or similar interactions with startups be with any affiliate of CLIENT in place of CLIENT.

2.6. Events & Workshops

CLIENT's marketing and business development representatives (and those of any affiliate of CLIENT) are invited to participate and promote CLIENT's brand and products (and those of affiliates of CLIENT) at all Supply Chain events and workshops. Plug and Play will provide:

2.6.1. EXPOs: "EXPO" takes place at the conclusion of each Batch, either in person or virtually. Each EXPO includes three-minute presentations from the startups in each Batch, panelist discussions and keynote speeches focused on the Batch. Attendees of each EXPO includes entrepreneurs, venture capitalists, Plug and Play corporate members, developers, investors, government entities, and universities. CLIENT may send representatives (who may be representatives of any affiliate of CLIENT) to attend EXPO and will receive the following benefits:

- a)** Distinction as a VIP judge, and
- b)** one (1) three to five-minute speaking slot. Plug and Play may grant longer speaking engagements depending on topic and speaker.

2.6.2. Mentorship Sessions: During the course of each Batch, Plug and Play hosts weekly, one to two hour mentorship sessions with startups, hosted by either a venture capitalist or corporate member. When applicable, CLIENT (including any affiliate of CLIENT) will have the opportunity to demonstrate and promote their technology focus areas and engage closely with startups.

2.6.3. Internal Meetings: CLIENT's representatives (including representatives of any affiliate of CLIENT) are welcome to attend Plug and Play's regular internal meetings during the Term, including monthly events covering the latest trends in the Supply Chain industry.

2.6.4. Friday Pitch Sessions: The Friday Pitch Sessions ("FPS") provide a platform for startups to interact with corporate executives, serial entrepreneurs, and investors at the Silicon Valley location every Friday. The four weekly, themed FPS meetings include: Money tech, Hard tech, Health tech, Software tech. CLIENT or any affiliate of CLIENT may attend any FPS either virtually or in-person.

2.6.5. Strategic Knowledge Sharing. During the Term, Plug and Play will provide CLIENT with regular updates and reports on market trends and insights from Plug and Play's perspective, encourage dialogues between CLIENT and members of Plug and Play, and will make members of Plug and Play available for regular dialogues with CLIENT decisions makers (or with decision makers of any affiliate of CLIENT as CLIENT may request).

2.7. Community, Branding, and Marketing

2.7.1. Public Relations: CLIENT and Plug and Play will work together to submit a press release announcing the collaboration. Additionally, during the Term, this collaboration will be promoted at Plug and Play's events and in event materials, including, but not limited to, event room screens, event programs, and pop-up banners

2.7.2. Branding in Silicon Valley: During the Term, a CLIENT placard will be positioned on Plug and Play's Strategic member wall seen by over 45,000 visitors annually. During the Term, Plug and Play will note CLIENT as a member and corporate partner on its website.

2.8. Business with Startups. During the Term, neither Plug and Play nor any of its affiliates will enter into any agreement or arrangement with any startup company included in the Program that would prevent CLIENT and its affiliates from investing in or otherwise doing business with such startup.

3. Authorization for use of Name, Trademark(s), Logo(s) and other Identifying Marks

3.1. As a condition of this Agreement, and for the Term of this Agreement, CLIENT hereby authorizes Plug and Play the right to use CLIENT'S name, logo and trademarks ("Marks") in the following manner:

- A sign on the Main Lobby Member Wall at Plug and Play
- A sign on the Supply Chain Wall at Plug and Play
- Event materials including event room screens, event programs, pop-up banners, etc.
- Inclusion of CLIENT'S name and logo on the Corporate Member/Corporate Partner page at www.plugandplaytechcenter.com.

3.2. In any other instance, Plug and Play must receive written permission from CLIENT prior to using CLIENT's Marks. The request for permission and the grant of permission may be delivered and received via email or other forms of electronic communication such as text messages. CLIENT shall retain all and any intellectual property rights, title or interest in or to any of the Marks used by Plug and Play.

3.3. CLIENT may use and publish Plug and Play's name, logo and trademarks ("Plug and Play Marks") in its marketing and promotional material with Plug and Play's prior written consent. For the avoidance of doubt, Plug and Play shall retain all and any intellectual property rights, title or interest in or to any of the Plug and Play Marks used by CLIENT.

4. Intellectual Property

- 4.1.** Plug and Play shall own no right, title and interest in and to all intellectual property created by CLIENT and a technology startup company introduced to CLIENT through the services provided by Plug and Play in connection with this Agreement, including without limitation, all logos, trademarks, names, ideas, concepts, creative materials, promotional materials, advertising, and graphics, including all copyrights and proprietary rights therein, and any inventions and discoveries first conceived or developed, whether or not protected by patent, trade secret or copyright.
- 4.2.** If Plug and Play and CLIENT desire to develop jointly any intellectual property during the Term, then the Parties shall execute a separate development agreement prior to starting any such development. The development agreement shall include, among other things, the Parties' mutual understanding about ownership of any developments.

5. Confidentiality

- 5.1.** While involved the Parties will be exposed to certain valuable confidential information that each deems confidential (hereafter the "Confidential Information"). This Confidential Information includes, but is not limited to, trade secrets, processes, studies, statistics, writings, files, procedures, business plans, marketing plans, business records, financial information, methods and techniques, customer and CLIENT lists, business contact list, intellectual property, and any and all information related to each Parties respective business. For the avoidance of doubt, Confidential Information also includes the terms of this and any Agreement Client has with Plug and Play, including terms and pricing, etc. The Parties understand that each has invested substantial effort into developing this Confidential Information. Because unauthorized disclosure of the Confidential Information would irreparably damage the Parties, each agree to keep any information learned confidential. Parties agree that they shall not disclose, market, develop, or cause to be marketed the other Party's Confidential Information without prior written consent. Business decision and discussions regarding the internal business matters of Plug and Play are confidential and not public information. Moreover, information and resources that are developed or obtained during our affiliation shall automatically become a trade secret of both Parties. Such information shall be used only to benefit of each Party. This confidentiality provision shall survive the termination of this Agreement, and shall last in perpetuity.
- 5.2.** For the avoidance of doubt, CLIENT shall be permitted to disclose Confidential Information on a need-to-know basis to any CLIENT Affiliate. For the purpose of this Agreement "CLIENT Affiliate" shall mean and include (i) any entity in which the Swedish company AB Volvo owns, directly or indirectly, more than 50 % of the share capital and/or controls, directly or indirectly, more than 50 % of the votes and (ii) Dongvo (Hangzhou) Truck Co., Ltd. (formerly named Dongfeng Nissan

Diesel Motor Co., Ltd.), China and VE Commercial Vehicles Ltd., India and (iii) any and all future joint ventures.

5.3. The obligations set forth in the section above shall not apply to any Confidential Information with respect to which each Party can demonstrate:

5.3.1. was in its possession prior to the time of disclosure by the disclosing Party hereunder and was not acquired directly or indirectly from the other Party

5.3.2. was in the public domain at the time of disclosure, or subsequently became part of the public domain through no fault of the receiving Party; or

5.3.3. was legally received from a third party who represents in writing that it was not subject to a confidentiality agreement regarding the information.

5.4. All Confidential Information disclosed by the disclosing Party under this Agreement, whether in a tangible form (including, without limitation, information incorporated in computer software or held in electronic storage media) or during all and any oral communication, shall be and remain property of the disclosing Party.

6. Indemnity

Each Party shall defend, indemnify and hold harmless the other Party, its parents, affiliates, and each of their respective directors, officers, employees, shareholders and all of their respective successors and permitted assigns (the “Indemnified Parties”), from and against any and all suits, claims, actions, liabilities, losses, damages, costs and expenses (including, but not limited to, interest, penalties, reasonable attorneys’ fees and other expenses of litigation) and causes of action of whatsoever kind (collectively referred to as “Claims”) which may be incurred by, asserted against, or recoverable from any Indemnified Party arising out of or relating to the gross negligence, willful misfeasance, or material breach of the terms of this Agreement by the other Party.

7. Limitation of Liability

In no event shall either Party be liable to the other Party for any special, incidental, punitive, or consequential damages.

8. Term

See **Exhibit A** below for details. Notwithstanding any other term of this Agreement, CLIENT may terminate this Agreement at any time upon not less than 10 days’ prior written notice to Plug and Play.

9. Relationship of the Parties

Neither Party is, nor represents itself to be, an agent, employee, partner or joint venture of the other Party. Neither Party shall, unless otherwise specified in this Agreement or in a writing signed by both Parties, make promises, representations or warranties that incur any liability for or on behalf of the other Party. The relationship of the Parties is non-exclusive unless otherwise specifically agreed to in writing by the Parties.

10. Notices

Any notices given under this Agreement shall be in writing to the following addresses:

Plug & Play, LLC
Attention: Michael Zayonc
Address: 440 North Wolfe Road,
Sunnyvale, CA, 94085, United States
Email: mike@pnptc.com

Volvo Group North America, LLC
Attention: Fredy Daza
Address: 335 E. Middlefield Road
Mountain View, CA 94043

Email: fredy.daza@volvo.com

11. Severability

If any provision of this Agreement shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court or judicial authority finds that any provision of this Agreement is invalid or unenforceable, but that by limiting such provision it would become valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited but only to the minimal extent required to make the provision valid and enforceable.

12. Entire Agreement

This Agreement, together with all Exhibits referenced herein (a) constitutes the entire Agreement between the Parties regarding this specific subject matter; (b) is the complete and exclusive statement of the terms thereof; and (c) it supersedes all prior oral or written agreements between the Parties with respect to this specific subject matter. Any modifications to the terms of this Agreement must be in writing and signed by an authorized representative of each Party.

13. Force Majeure and Termination

Neither Party shall be liable for any delays in performance hereunder due to circumstances beyond its control including, but not limited to, acts of nature, acts of governments, delays in transportation, and delays in delivery or inability of suppliers to deliver. CLIENT shall have the option to terminate any and all obligations under this Agreement by so notifying Plug and Play in writing if the delay in performance exceeds 30 days from the originally agreed upon performance date.

14. Choice of Law and Dispute Resolution

This Agreement shall be interpreted and enforced according to the applicable federal laws of United States of America and the state laws of California without application of its conflict of law or choice of law rules. Any dispute, controversy or claim arising out of or in relation to this Agreement, or at law, or the breach, termination or invalidity of this Agreement, that cannot be settled amicably by agreement of the parties to this Agreement shall be finally settled in accordance with the arbitration rules of JAMS then in force, by one or more arbitrators appointed in accordance with said rules. The place of arbitration shall be San Francisco, California, U.S.A. Without prejudice to the other provisions of this Agreement, all arbitral proceedings conducted pursuant to this Section 14, all information disclosed and all documents submitted or issued by or on behalf of any of the Parties or the arbitrators in any such proceedings, as well as all decisions and awards made or declared in the course of any such proceedings shall be kept strictly confidential and may not be used for any other purpose than these proceedings nor be disclosed to any third party without the prior written consent of the Party to which the information relates or, as regards a decision or award, the prior written consent of both Parties.

15. Assignment

This Agreement shall bind and be for the benefit of the Parties and their heirs, fiduciaries, and permitted successors and assigns. Neither Party may assign its rights or delegate its obligations under this Agreement, except to a present or future affiliate upon written notice to the other Party or as otherwise provided herein.

16. Representations and Warranties

The Parties executing this Agreement on behalf of Plug and Play and CLIENT represent and warrant that they have the authority from their respective governing bodies to enter into this Agreement and to bind their respective companies to all the terms and Conditions of this Agreement.

17. Other

If any provision herein will be deemed or declared unenforceable, invalid or void by a court of competent jurisdiction, such provision will be construed as nearly as possible to reflect the original intent of the Parties and the same will not impair any of the other provisions contained herein, which will be enforced in accordance with their terms. Neither Party's failure to insist upon strict performance of any provision of this Agreement will be construed as a waiver of any of its rights hereunder. This Agreement may be signed in counterparts, which together shall be one contract. Faxed or scanned signatures will be treated as original.

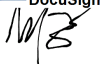
(Signature page follows)

Acknowledged, Accepted and Agreed:

Plug & Play, LLC

Volvo Group North America, LLC

Represented by:

DocuSigned by:

DEC3A1CF4E4B1...

By

Name: Michael Zayonc

Title: Partner, Supply Chain Fund

Date: 3/24/2022

Represented by:

DocuSigned by:

457A3B4D2A1B421...

By:

Name: Åsa Mohalland

Title: SVP & Head of Connected Solutions

Date: 3/25/2022

Exhibit A: Term

Description	Segment Term
Anchor Membership (Supply Chain) - Segment 1	Start Date: April 01, 2022 End Date: March 31, 2023
Anchor Membership (Supply Chain) - Segment 2	Start Date: April 01, 2023 End Date: March 31, 2024
Anchor Membership (Supply Chain) - Segment 3	Start Date: April 01, 2024 End Date: March 31, 2025

Term:

The term of this Agreement shall commence on the Effective Date and shall continue until March 31, 2025 (the “Term”). Each 12-month period of the Term commencing on April 1 is a “Segment.”